

Based on Plaintiff's Case Management Conference Statement. The Case Management Conference is continued to December 16, 2027, at 1:30 p.m. Plaintiff to provide notice to Defendant. No appearances are necessary on September 24, 2026.

Defendant's Motion to Compel Arbitration is GRANTED. The parties are ordered to binding arbitration on Plaintiff's individual employment claims. The Class claims are stricken from the Complaint. The proceedings are stayed pending the outcome of arbitration and the case management conference is vacated.

"Under section 1281.2, a trial court must grant a motion or petition to compel arbitration only 'if it determines that an agreement to arbitrate the controversy exists.' The court makes this determination in a summary process. (See § 1290.2.) '[T]he trial court sits as a trier of fact, weighing all the affidavits, declarations, and other documentary evidence, as well as oral testimony received at the court's discretion, to reach a final determination.'" (*Gamboa v. Northeast Community Clinic*, (2021) 72 Cal. App. 5th 158, 164, citing *Engalla v. Permanente Medical Group, Inc.* (1997) 15 Cal.4th 951, 972.) "The burden of persuasion is always on the moving party to prove the existence of an arbitration agreement with the opposing party by a preponderance of the evidence." (*Gamboa*, 72 Cal. App. 5th at 164.) the burden of production may shift in a three-step process. (*Ibid.*) First, the moving party bears the burden of producing prima facie evidence of a written agreement to arbitrate the controversy, which could include attaching to the motion a copy of the arbitration agreement purporting to bear the party's signature. (*Ibid.*) If the moving party meets its initial prima facie burden, the opposing party bears the burden of producing evidence to challenge the authenticity of the agreement, which may be completed with a declaration stating the party never saw or does not remember seeing the agreement. (*Id.* at 165.) If the opposing party meets its burden of producing evidence, then, in the third step, the moving party must establish with admissible evidence a valid arbitration agreement between the parties by a preponderance of the evidence. (*Id.* at 165-166.)